

26STCV11364 26STCV11364

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Case Number: 26STCV11364 Hearing Date: August 12, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 12, 2026

Case Name: Abernathy v. Magana, et al.

Case No.: 26STCV11364

Matter: Demurrer

Moving Party: Defendants Gerardo Aguirre, Evelyn M. Cobian, Angela D. Magana, Paul

S. Leon, Scott William Ochoa, Sophia Lobatos, and Jim Bowman

Responding Party: Plaintiff Mario Abernathy

Ruling: The Demurrer is sustained.

The Motion to Strike is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an action in which Plaintiff Mario Abernathy alleges that Defendants, who seem to be employees of the City of Ontario, improperly posted an inspection notice on Plaintiff's real property and then attempted to engage in an illegal and warrantless search of his property while pursuing a meritless legal proceeding against him.

On May 18, 2026, Plaintiff filed the operative First Amended Complaint ("FAC") for (1) fraud, (2) abuse of process, (3) IIED, (4) civil conspiracy, (5) conspiracy against rights—42 USC § 1985(3), (6) injunctive relief, (7) implied contractual indemnity, (8) negligent hiring, supervision, or retention of employee, (9) negligence, (10) intentional interference with contract, and (11) intentional interference with prospective economic relation.

Defendants Gerardo Aguirre, Evelyn M. Cobian, Angela D. Magana, Paul S. Leon, Scott William Ochoa, Sophia Lobatos, and Jim Bowman now demur to the entirety of the FAC on several bases.

When considering demurrers, courts read the allegations liberally and in context, and "treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn v. Mirdaç (2007) 147 Cal.App.4th 740, 747.) It is error "to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

While, for whatever reason, no one wants to discuss it, judicially noticeable facts seem to show that Paul S. Leon is the Mayor of the City of Ontario; Scott Ochoa is the City Manager of Ontario; Gerardo Aguirre is some sort of community improvement officer in Ontario, and Angela D. Magana is a director of community improvement. Jim Bowman is on the Ontario City Council.

As an initial matter, Defendants' argument that this action was pursued in the wrong venue is not a proper argument on a demurrer. This argument is rejected.

Next, the Demurrer is sustained, without leave to amend, as to the fifth cause of action because this claim is either based on criminal statutes that do not have a private right of action (18 USC § 241), or statutes that do not apply under the facts pleaded (42 USC § 1985(3) [pertaining to "equal protection of the laws"]).

The Demurrer is also sustained, without leave to amend, as to the sixth cause of action for injunctive relief, as this is a remedy and not a cause of action.

The Demurrer is sustained, without leave to amend, as to the seventh cause of action for indemnity because there are no facts pleaded to show liability on the part of Plaintiff for which indemnity would be needed.

The Demurrer is sustained as to all other causes of action for uncertainty and failure to state sufficient facts, with 20 days leave to amend. Plaintiff fails to allege how he was damaged—there is no allegation that the illegal search actually occurred. Likewise, the facts are not sufficient to show "extreme and outrageous" conduct. There is no reliance pleaded for the fraud claim. Further, "the mere filing or maintenance of a lawsuit—even for an improper purpose—is not a proper basis for an abuse of process action." (Oren Royal Oaks Venture v. Greenberg, Bernhard, Weiss & Karma, Inc. (1986) 42 Cal.3d 1157, 1169.) Also, Plaintiff fails to allege the specific involvement of each Defendant, merely lumping the Defendants together via generalized allegations. Finally, there are no allegations of a contract or future economic relationship as to which there was any interference.

In sum, the Demurrer is sustained. The Court denies leave to amend as to COAs 5-7. The Court grants 20 days leave to amend as to the remaining COAs.

Given the ruling on the Demurrer, the Motion to Strike is denied as moot.

Moving party to give notice.